

## 25STCV31418 25STCV31418

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-16

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Case Number: 25STCV31418 Hearing Date: September 16, 2026 Dept: 512

HEARING DATE: Weds., September 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bautista

v. Marshall COMP.

FILED: 10-28-25

CASE NUMBER: 25STCV31418

NOTICE:

OK

PROCEEDINGS: MOTION TO STRIKE

MOVING PARTY: Defendant

Ronald H. Marshall

RESP. PARTY: None

MOTION TO STRIKE

(CCP §§ 435; 436)

TENTATIVE RULING:

Defendant Ronald H. Marshall's unopposed

Motion to Strike is GRANTED as to the request to strike prevailing

party attorneys' fees references and requests in paragraphs 9 and 21 in the

Complaint and in the prayer for relief.

Moving party is ordered to give  
notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,  
rule 3.1300) OK

☒ Correct  
Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court  
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None  
filed as of September 14, 2026 ☐ Late ☒  
None

REPLY: None  
filed as of September 14, 2026 ☐  
Late ☒ None

ANALYSIS:

I.  
Background

On October 28, 2025, Plaintiff Rummel  
Mor Bautista ("Plaintiff"), proceeding pro per, filed the instant action  
against Defendant Ronald H. Marshall ("Defendant") and Does 1-20, alleging  
Breach of Written Retainer and Quantum Meruit causes of action.

On June 30,  
2026, default was entered against Defendant.

On July 1, 2026,  
Defendant filed the instant Motion to Strike (the "Motion").

On August 18,

2026, the Court, in pertinent part, accepted the parties' oral stipulation to vacate default of Defendant and ordered the default entered against Defendant on 6/30/26 to be vacated. (8/18/26 Order.)

On August 31, 2026, the Court, on its own motion, continued the hearing on the Motion from September 4, 2026, to September 16, 2026, and provided notice. (8/31/26 Order, Cert. of Service.)

On September 2, 2026, Defendant filed and served Notice of Ruling.

As of September 14, 2026, no Opposition to the Motion has been filed.

## II. Procedural Issues

As an initial matter, the Court notes that the Motion was originally filed while Defendant was in default. However, given that the default against Defendant was vacated and set aside prior to the hearing on the instant Motion, the Court proceeds to address the Motion on the merits.

## III. Legal Standard

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

Finally, Code of Civil Procedure

section 435.5 requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a), emphasis added.)

IV.

Discussion

A. Meet and Confer

In conjunction with the Motion, Defendant filed a meet and confer declaration, stating that defense counsel and Plaintiff emailed regarding the issues raised in the Motion to no avail. (Motion, DiRe Decl., ¶¶ 1-5.)

The Court finds the meet and confer requirement is not satisfied. However, an insufficient meet and confer process is not grounds to grant or deny a motion to strike. (Code Civ. Proc., § 435.5, subd. (a)(4).)

B. Motion to Strike

Defendant moves

to strike paragraphs 9 and 21 in the Complaint and the prayer for attorneys' fees in the Complaint on the grounds that the subject retainer agreement does not contain a fee-shifting clause or provision for an award of attorney fees, and Code of Civil Procedure section 1717 is also thus inapplicable. (Motion, pp. 1-2, 5-8.)

Code of Civil

Procedure section 1021 provides: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." (Code Civ. Proc., § 1021.)

Civil Code section 1717 provides, in pertinent part : "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs..."

Here, the Complaint states that "[p]ursuant to the terms of the Retainer Agreement and Code of Civil Procedure Section 1717, Plaintiff is entitled to recover reasonable attorneys' fees and costs incurred in bringing this action." (See Compl., p. 4.) However, the subject Retainer Agreement attached to the Complaint does not contain terms stating that the prevailing party in a legal proceeding is entitled to an award of reasonable attorney's fees. (Compl., Exh. A.) The Court may consider exhibits attached to the Complaint in making a determination regarding the face of a pleading. (See e.g., *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91.)

The Court finds that the Complaint, inclusive of its attached exhibits, fails to contain sufficient facts to support the claim for prevailing party attorneys' fees and thus the attorneys' fees request constitutes improper matter. (See Code Civ. Proc. §§ 435, 436.) Indeed, the subject retainer agreement between the parties is attached to the Complaint as Exhibit A and does not contain terms regarding prevailing party attorneys' fees, which thus demonstrates that Code of Civil Procedure sections 1021 and 1717 do not permit the award of prevailing party attorneys' fees in this matter absent a specific provision by statute. However, Plaintiff's Complaint fails to identify a statute permitting the award of prevailing party attorneys' fees besides Civil Code section 1717.

Notably, Plaintiff did not file an Opposition to the instant Motion.

As such, the Court GRANTS Defendant's unopposed Motion and strikes the request for prevailing party attorneys' fees in paragraphs 9 and 21 in the Complaint and in the prayer for relief.

V.

## Conclusion & Order

Based on the foregoing, Defendant

Ronald H. Marshall's unopposed Motion to Strike is GRANTED as to the request to strike prevailing party attorneys' fees references and requests in paragraphs 9 and 21 in the Complaint and in the prayer for relief.

Moving party is ordered to give notice.